

24NNCV02984 24NNCV02984

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-07

Motion: PLAINTIFF'S MOTIONS TO COMPEL DISCOVERY; DEFENDANTS' MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS

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Case Number: 24NNCV02984 Hearing Date: August 7, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

LAYLA LENG,

Plaintiff(s),

vs.

NEW
ROYAL INN, INC., et al.,

Defendant(s).

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CASE NO.: 24NNCV02984

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTIONS TO COMPEL DISCOVERY; DEFENDANTS' MOTION
FOR RELIEF FROM WAIVER OF OBJECTIONS

Dept.

3

8:30

a.m.

August 7,

2026

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I.

PLAINTIFF'S

MOTIONS TO COMPEL AND DEEM ADMITTED

On May 28, 2026, plaintiff Layla Leng

("Plaintiff") filed discovery motions for orders deeming admitted the Requests
for Admissions, Set One, served on defendants New Royal Inn, Inc., Jung Chen,
and Helen Chen (collectively, "Defendants") and compelling Defendants to serve

verified responses, without objections, to Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One) within 30 calendar days.

On July 10, 2026, Defendants filed opposition briefs stating that the motions are moot because responses were served the same day and that the delay was caused by “an attorney vacancy in [counsel’s] office.” (Motion, Green Decl., ¶ 3.)

Plaintiff did not file a reply brief disputing that responses were served.

Accordingly, Plaintiff’s motions are DENIED as moot.

II.

DEFENDANTS’

MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS RE: REQUESTS FOR PRODUCTION

Defendants filed a motion on July 10, 2026, requesting relief from their waiver of objections with respect to their responses to Plaintiff’s Request for Production (Set One) pursuant to Code of Civil Procedure section 2031.300(b). Defendants contend that the failure to serve verified responses on time was due to a staffing vacancy. (Motion, pp. 2-3.) The document requests were served on July 23, 2025, and Defendants argue that the delay in serving timely responses was the result of mistake, inadvertence, or excusable neglect because “[a]n attorney vacancy affected the timing of verification and finalization of responses.” (Motion, p. 5.) This vacancy has since purportedly been filled with the retention of new lead counsel and Defendants claim they acted diligently once new counsel assumed responsibility. (Motion, pp. 5-6.)

Defense counsel Michael Green submits a declaration that is devoid of any dates and fails to identify any attorney whose departure caused the purported “vacancy” that caused Plaintiff’s discovery responses to go unanswered for nearly a year. Defendants therefore fail to show that their failure to serve responses were the result of mistake, inadvertence, or excusable neglect. Also, as Plaintiff notes, Defendants did not assert any objections when they eventually served their responses. Furthermore, the Court disagrees that Plaintiff has not been prejudiced by the delay.

Defendants state in their discovery responses that responsive documents “no longer exist” without stating when they existed or were destroyed, or if any other copies of the records exist elsewhere.

III.

CONCLUSION

Plaintiff’s three discovery motions are DENIED as moot. No sanctions are imposed because the notice of motion does not identify the party, attorney, or person to be sanctioned or the type of sanction sought.

Defendants’ motion for relief from the waiver of objections is DENIED.

Dated
this 7th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.